

3.

CASE #	CASE NAME	HEARING NAME
CVPS2501209	HESARI VS BAMBOO INSURANCE COMPANY, AN UNKNOWN ENTITY, ET AL.	HEARING RE: DEMURRER ON 2ND AMENDED COMPLAINT FOR BREACH OF CONTRACT/WARRANTY (OVER \$35,000) OF SERAJ MESBAH HESARI BY BAMBOO INSURANCE COMPANY, AN UNKNOWN ENTITY, ET AL.

Tentative Ruling:

No opposition filed.

Defendant Sutton National Insurance Company's Demurrer to the 2nd, 3rd, 4th and 5th Causes of Action SUSTAINED without leave to amend.

Trial Setting Conference continued to November 24, 2026.

OSC re status of arbitration set for November 24, 2026.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2507533	DOE, AN INDIVIDUAL VS MIRAGE ENDOSCOPY CENTER, LLC., A CORPORATE ENTITY	ORDER TO SHOW CAUSE RE: USE OF PSEUDONYM AS TO WILSHIRE LAW FIRM, PLC, SHANNON MARIE JENKINS

Tentative Ruling: "Because of the inherently sensitive nature of some proceedings, statutes specifically allow for keeping certain parties' identities confidential." (*Department of Fair Employment and Housing v. Superior Court of Santa Clara County* (2022) 82 Cal.App.5th 105, 110.) "Even in the absence of a statute, anonymity for parties may be granted when necessary to preserve an important privacy interest." (*Id.*)

"Among the guarantees of the First Amendment to the United States Constitution is that court proceedings are open and public. [Citation.] Public access to court proceedings is essential to a functioning democracy. It promotes trust in the integrity of the court system, and it exposes abuses of judicial power to public scrutiny. [Citation.] The right of public access applies not only to criminal cases, but also to civil proceedings like this one. [Citation.] And the right to access court proceedings necessarily includes the right to know the identity of the parties. [Citation.]" *Department of Fair Employment and Housing v. Superior Court of Santa Clara County* (2022) 82 Cal.App.5th 105, 110-111.)

"Before a party to a civil action can be permitted to use a pseudonym, the trial court must conduct a hearing and apply the overriding interest test: A party's request for anonymity should be granted only if the court finds that an overriding interest will likely be prejudiced without use of a pseudonym, and that it is not feasible to protect the interest with less impact on the constitutional right of access. In deciding the issue the court must bear in mind the critical importance of the public's right to access judicial proceedings. Outside of cases where anonymity is expressly permitted by statute, litigating by

pseudonym should occur ‘only in the rarest of circumstances.’ [Citation.]” (*Department of Fair Employment and Housing v. Superior Court of Santa Clara County* (2022) 82 Cal.App.5th 105, 111-112.)

As Plaintiff’s identity is known to Defendants, proceeding anonymously would not intrude on their rights. (*Department of Fair Employment and Housing v. Superior Court of Santa Clara County* (2022) 82 Cal.App.5th 105, 110.) Therefore, the only factor the court must consider is whether Plaintiff’s anonymity outweighs the public’s First Amendment interests in knowing the party’s identity.

In ruling on a motion for anonymity, the court must consider all relevant evidence likely to affect the answer, but the moving party seeking anonymity has the burden. (*Department of Fair Employment and Housing v. Superior Court of Santa Clara County* (2022) 82 Cal.App.5th 105, 112.)

Plaintiff’s position that disclosure of the type of medical procedure she was undergoing at that time of the assault does not support the request. Plaintiff’s claim that the possibility of her name would appear in unspecified background checks as an alleged victim of sexual assault is speculative at best. The court also must consider Plaintiff’s need to remain anonymous to avoid being publicly blamed, doubted or judged and traumatized and whether that outweighs the public’s First Amendment right to access to the proceedings, including knowing Plaintiff’s identity. While the Legislature could have identified the ability to use pseudonym’s in every case involving an alleged sexual assault, they chose not to do so. Granting the use of a pseudonym without a specific statute should only be granted in the rarest of circumstances. Plaintiff has failed to meet her burden to show that this is a rare circumstance that overrides the public’s First Amendment rights.

Case Management Conference continued to September 21, 2026, as case not at issue.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2508146	LOPEZ GONZALEZ VS MATARAS	MOTION TO BE RELIEVED AS COUNSEL FOR

Tentative Ruling: No tentative ruling. Hearing taken off calendar as motion was granted.